

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
NAIQUAN MIDYETT and LASHAMECCA WATSON,

SUMMONS

Plaintiffs,

Index No.

-against-

The Basis of Venue is:
Location of Prosecution

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTINA TELLO, Shield No. 15123, DONAVIN
FLOYDFULMORE, Shield No. 5551, NYPD POLICE
CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870,
and NYPD POLICE OFFICERS JOHN AND JANE
DOES NUMBERS ONE THROUGH TEN,

Plaintiffs designate Kings
County as the place of trial.

Defendants.
----- X

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 8, 2024

Yours, etc.



OMAR T. RUSSO
SHULMAN-HILL, PLLC

Attorneys for Plaintiffs
1 State Street Plaza, 15th Floor
New York, New York 10004
(212) 221-1000

TO: THE CITY OF NEW YORK, Office of the Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER CHRISTINA TELLO, Shield No. 15123, Police Service Area 3, 25 Central Avenue, Brooklyn, New York 11206

NYPD POLICE OFFICER DONAVIN FLOYDFULMORE, Shield No. 5551, Housing Borough Brooklyn Impact Response Team, 1 Police Plaza, New York, New York 10038

NYPD POLICE CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870, Police Service Area 3, 25 Central Avenue, Brooklyn, New York 11206

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NAIQUAN MIDYETT and LASHAMECCA WATSON,

INDEX NO.

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
CHRISTINA TELLO, Shield No. 15123, DONAVIN
FLOYDFULMORE, Shield No. 5551, NYPD POLICE
CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870,
and NYPD POLICE OFFICERS JOHN AND JANE
DOES NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs, NAIQUAN MIDYETT (“Midyette”) and LASHAMECCA WATSON
 (“Watson”), by their attorneys, Shulman-Hill, PLLC, as and for their Verified Complaint herein,
allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants’ violation of Plaintiffs’ rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 22, 2023, at approximately 11:30 p.m., Plaintiffs, while lawfully at or in the vicinity of Mrytle Avenue and Marcy Avenue, County of Kings, New York, were subject to unlawful stops, detentions, and arrests by the defendant officers. Plaintiffs were individually subjected to grossly excessive force and unlawful police misconduct. Plaintiffs would appear in Kings County Criminal Court where they were formally charged with crimes they did not commit. Beyond being unlawfully stopped and detained, falsely arrested and maliciously prosecuted, assaulted, battered, and subjected to excessive use of force, Plaintiffs were denied their liberty for in excess of 24 hours between the Police Service Area 3 (“PSA 3”) and Kings County Central Booking. All charges against Plaintiffs were dismissed and sealed in their entirety on or about December 18, 2023 (Watson) and December 20, 2023 (Midyett). Plaintiffs were deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and their constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiffs, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Naiquan Midyett, is a resident of the State of New York.
3. Plaintiff, Lashamecca Watson, is a resident of the State of New York.
4. NYPD Police Officer Christina Tello, Shield No. 15123, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD Police Officer Christina Tello, Shield No. 15123, is being sued in her individual and official capacities.
6. At all times relevant herein, NYPD Police Officer Christina Tello, Shield No. 15123, was assigned to the PSA 3 command.
7. NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, is being sued in his individual and official capacities.
9. At all times relevant herein, NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, was assigned to the PSA 3 command.
10. NYPD POLICE CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
11. NYPD POLICE CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870, is being sued in his individual and official capacities.
12. At all times relevant herein, NYPD POLICE CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870, was assigned the PSA 3 command.
13. NYPD Police Officers John and Jane Does are and were at all times relevant herein officers, employees, and agents of the New York City Police Department assigned, upon information and belief, to PSA 3 and 79th Precinct.
14. NYPD Police Officers John and Jane Does are being sued in their individual and official capacities.
15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their

duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed timely Notices of Claims against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. More than thirty (30) days have elapsed since service of said Notices of Claims was filed and the City of New York has failed to pay or adjust the claims.

19. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

20. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

21. On July 22, 2023, at approximately 11:30 p.m., Plaintiffs were lawfully present in the vicinity of Marcy Avenue and Myrtle Avenue, at the Marcy Park Playground, County of Kings, New York, when the defendant officers unlawfully descended upon, detained, and arrested Plaintiffs without probable cause or legal justification.

22. At the referenced place and time, Plaintiff's, members of a large family, were in the process of disassembling a barbeque that had been held in celebration of an elderly relative.

23. Watson, after assisting with breaking down decorations, was gathering her belongings to leave.

24. Without justification, Watson was violently grabbed by defendant, NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, and handcuffed on one hand.

25. Watson was then dragged to and across the ground by the handcuffed wrist by the defendant officer, an adult man nearly twice her size.

26. Defendant, NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, then threw Watson over his shoulder, a traumatic scene which bystanders captured on video.

27. Defendant, NYPD Police Officer Donavin Floydfulmore, Shield No. 5551, then began to grope Watson's genitalia as he forcibly carried her, pleading for help, over his shoulder.

28. Watson cried for help, horrified by what was happening, but instead of another officer rescuing her, she was placed in unreasonably tight metal handcuffs, causing her pain, discomfort, and injury.

29. Defendant, NYPD Police Officer Christina Tello, Shield No. 15123, was among the defendant officers present at the scene who witnessed, and ignored, defendant Floydfulmore's conduct.

30. Defendant, NYPD Police Officer Christina Tello, Shield No. 15123, did nothing to intervene or mitigate the harm or injury perpetrated by defendant Floydfulmore.

31. Meanwhile, other members of the family were being assaulted, battered, and arrested nearby.

32. Midyett had just arrived at the park in an Uber when he witnessed his sister and other relatives being violently arrested by the defendant officers.

33. Specifically, Midyette observed his mother be thrown to the ground by the defendant officers, causing her to hit her head and sustain a fractured bone in the wrist.

34. When Midyett approached to ask why his relatives were being arrested, he was shoved by three defendant officers.

35. One of the three defendant officers grabbed Midyette's shirt and pushed him to the ground so violently that his shirt ripped off his body, and the chain around his neck broke, resulting in substantial property damage and economic loss.

36. Midyett was thereafter placed in unreasonably tight metal handcuffs causing pain, discomfort and injury.

37. Plaintiffs were individually placed into police vehicles.

38. In the process of loading Midyett into the police vehicle, he was thrown with such force that his head banged against the door frame.

39. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have objective bases to accuse Plaintiffs of committing a crime or violating the law in any way.

40. At no point did the defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs' possession, custody, or control.

41. Plaintiffs did not resist arrest at any point herein.

42. Nevertheless, Watson and Midyett were transported to PSA 3 against their will.

43. Upon arrival to PSA 3, Watson reported her assault to defendant, NYPD Police Captain Raymond Kwong, Tax Reg. No. 932870.

44. Rather than aiding, intervening, or investigating this report of physical and sexual abuse, defendant Kwong audibly laughed at Watson.

45. While Plaintiffs were in custody, defendant officers unlawfully searched, fingerprinted, photographed, and questioned them.

46. Defendant police officers provided the Kings County District Attorney's Office with the false, misleading, and/or incomplete information that Plaintiffs had committed crimes.

47. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiffs were engaged in assault in the second degree, assault in the third degree, attempted assault in the third degree, obstructing governmental administration in the second degree, resisting arrest, and harassment in the second degree.

48. On or about July 23, 2023, Plaintiffs were arraigned in criminal court, charged with crimes they did not commit, and thereafter released on their own recognizance, despite the defendant officers' false representations.

49. For over 24 hours, Plaintiffs endured inhumane jailhouse conditions and were denied their liberty before appearing from a judge and being released.

50. Immediately upon release, Plaintiffs sought medical treatment for their injuries at NYU Langone Hospital in Brooklyn and Brooklyn Hospital.

51. Upon arrival to Brooklyn Hospital, Midyett was diagnosed with and treated for rib contusion as a result of the assault by the defendant officers.

52. Midyett was administered an anti-inflammatory drug via injection.

53. Upon arrival to NYU Langone, Watson reported pain in her whole body, but her chief complaint was the pain in her arms and lower back from defendant Floydfulmore's assault.

54. NYU Langone treated and diagnosed Watson with neurapraxia, a type of nerve damage in both her wrists by prescribing pain medication and injecting the affected areas with an anti-inflammatory medications.

55. Watson commenced a course of physical therapy treatment for the neurapraxia, for pain, tingling, swelling, numbing, tenderness and weakness in her bilateral wrists, which has caused her to lose grip in her hands and be substantially limited.

56. She similarly treated for lumbar facet syndrome, which caused persistent dull pain, spasms, and tenderness in her lower back which radiated down to both her feet.

57. On or about September 15, 2023, the assault charge against Watson was dismissed.

58. On or about September 20, 2023, the assault charge against Midyette was dismissed.

59. On or about December 18, 2023, the remaining charges against Watson were dismissed and sealed in their entirety.

60. On or about December 20, 2023, the remaining against Midyett were dismissed and sealed in their entirety.

61. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiffs.

62. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiffs to sustain mental and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

Against the Individual Defendants

63. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

64. Defendants owed a duty of care to Plaintiffs.

65. To the extent defendants claim that the injuries to Plaintiffs by the defendant police officers were unintentionally caused and that the force used by the defendants against them was unintentional, then the defendants breached that duty of care by – among other things – falsely arresting, seizing, throwing, dragging, and tightly handcuffing them, and groping Watson inappropriately.

66. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

67. All of the foregoing occurred without any fault or provocation by Plaintiffs.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

70. As a result of the aforementioned conduct of defendants, Plaintiffs sustained harm, including but not limited to physical injuries and mental distress.

SECOND CAUSE OF ACTION

Unlawful Stop and Search

Against Defendants Tello and Floydfulmore

71. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

72. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

73. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

74. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty

Against the Individual Defendants

77. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

78. The individually named defendant officers, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

79. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest/False Imprisonment

Against the Individual Defendants

80. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

81. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and the Constitution. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

82. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, physical, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION**Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights:
Excessive Force***Against Defendants Tello and Floydfulmore*

86. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

87. The use of excessive force by defendants by – among other things – violently grabbing, dragging, and groping Watson, and violently pushing Mr. Midyett to the floor, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress***Against the Individual Defendants*

89. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

91. The defendant officers caused Ms. Watson physical and emotional distress by violently dragging and groping her in front of her community, then laughing at her when she attempted to report the assault.

92. The defendant officers caused Mr. Midyett physical and emotional distress by violently pushing him to the floor needlessly in front of his community, ruining his belongings in the process.

93. Plaintiffs were forced to observe the assaults, batteries, and constitutional violations of one another, along with their senior mother nearby, as officers taunted them.

94. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

95. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress
Against the Individual Defendants

99. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

100. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct to such a degree as to go beyond all possible grounds of decency, which intentionally caused severe emotional distress to Plaintiffs.

101. Defendant officers, without warning or justification, became immediately physical and violent with Plaintiffs, which caused them both agonizing physical pain and emotional distress.

102. Defendant Officer Floydfulmore went as far as to grope Ms. Watson inappropriately in front of her peers, an unnecessary act intended to humiliate her.

103. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

104. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

Against the City of New York

108. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

109. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

110. Upon information and belief, Defendant Officer Floydfulmore had a known, documented history of civilian complaints, and a lack of fitness for public-facing work.

111. Nevertheless, the defendant officers were permitted to continue public-facing duties and enabled to him to engage in the conduct described herein.

112. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

Against Defendants Tello and Kwong

113. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

114. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' constitutional rights, had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a result of the foregoing, Plaintiffs suffered permanent injury, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

117. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

Against All Defendants

121. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

122. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

123. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

124. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

125. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

126. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION
42 U.S.C § 1983 and New York State Law
Malicious Prosecution
Against the Individual Defendants

130. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

131. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution and the laws of the State of New York.

132. Defendants commenced and continued criminal proceedings against Plaintiffs.

133. There was actual malice and an absence of probable cause for the criminal proceedings against Plaintiffs and for each of the charges for which they were prosecuted.

134. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

TWELFTH CAUSE OF ACTION
Assault
Against Defendants Tello and Floydfulmore

135. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

136. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, that such acts caused apprehension of such contact in the Plaintiffs.

137. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

138. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

139. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Battery

Against Defendants Tello and Floydfulmore

141. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

142. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiffs when they, in a hostile and/or offensive manner, violently attacked them causing physical injury, brutally effecting arrests of Plaintiffs without their consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such batteries.

143. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

144. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

145. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

146. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights

Against All Defendants

147. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

148. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

149. The acts of the defendant officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be

secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

150. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 27 hours in total.

151. By reason of the acts and omissions by defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiffs' AC 8-802 Rights *Against All Defendants*

152. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

153. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

154. The defendant officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

155. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' AC 8-802 right against unreasonable search and seizure and excessive force, had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

156. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

157. By reason of the acts and omissions by the defendants described above, Plaintiffs have endured physical and emotional injuries.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiffs' AC 8-802 Rights *Against All Defendants*

158. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

159. The defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

160. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiffs for the wrongdoing of the covered individual defendant officers.

161. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

162. The acts of the defendant officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

163. The defendant officers, while in uniform, unlawfully seized and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 27 hours in total.

164. By reason of the acts and omissions by defendants described above, Plaintiffs have endured mental and emotional injuries and were otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

City-Employer’s Liability for Defendant Officer’s Failure to Intervene in Violation of Plaintiffs’ AC 8-802 Rights *Against All Defendants*

165. Plaintiffs repeat, reiterate, and re-allege the foregoing paragraphs as if the same were fully set forth at length herein.

166. The defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

167. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiffs for the wrongdoing of the covered individual defendant officers.

168. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

169. The defendant officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and

to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

170. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

171. The defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

172. By reason of the acts and omissions by the defendants described above, Plaintiffs have endured physical and emotional injuries.

EIGHTEENTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State Constitution
Against All Defendants

173. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

174. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 3, 5, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

175. As a direct and proximate result of defendants' deprivations of Plaintiffs' rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

176. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, mental, economic, and emotional injuries, as well as a deprivation of liberty.

177. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

NINETEENTH CAUSE OF ACTION

Failure to Provide Adequate Medical Care

Against the Individual Defendants

178. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

179. By the actions described herein, defendants failed to provide timely medical treatment and transportation to the hospital, as neither Plaintiff was taken during their time in custody and went themselves upon release.

180. The acts and conduct of the defendants were the direct and proximate cause of lasting physical injury and damage to Plaintiffs, which violated Plaintiff's rights guaranteed to Plaintiffs by the laws of the State of New York and the United States Constitution.

181. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

182. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

183. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

184. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs NAIQUAN MIDYETT and LASHAMECCA WATSON, demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
October 8, 2024

SHULMAN & HILL, PLLC
1 State Street Plaza, 15th Floor
New York, New York 10004

By: 
OMAR T. RUSSO

TO: THE CITY OF NEW YORK, Office of the Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD POLICE OFFICER CHRISTINA TELLO, Sheild No. 15123, Police Service Area 3, 25 Central Avenue, Brooklyn, New York 11206

NYPD POLICE OFFICER DONAVIN FLOYDFULMORE, Shield No. 5551, Housing Borough Brooklyn Impact Response Team, 1 Police Plaza, New York, New York 10038

NYPD POLICE CAPTAIN RAYMOND KWONG, Tax Reg. No. 932870, Police Service Area 3, 25 Central Avenue, Brooklyn, New York 11206

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate with the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
October 8, 2024


OMAR T. RUSSO